MODULE 01

Introduction to Legal Aspects in Construction Industry

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Key Laws Governing the Construction Industry in India

The Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act.1996

Prgnose: Protecting · construction clere safety, health, welfare

Provisions: Enscuring basic amenities, proct contract workers

The Contract Labour (Regulation and Abolition) Act.1970

Propose: Regulating employment of controt labour in construct

Provisions: Ensuring basic amenities and protecting contract wo-

The Factories Act, 1948

Propose; Governing contracts and agreemens in construction

Provisions: Ensuring basic amenities, protecting contrat workers

The Indian Contract Act.1872

Governs contracts and agreements in construction projects

The Real Estate (Regulation and Development) Act, ᵾᵾᵾ (REAA)

Protects home-buyers and promate transparency

Provisions: Protects home buyers and promote-transbarency

Environment (Protection) Act.1966

Regulate environmental impoct of construction

Provisions: Environmen-tal clearance for large

Controls on emissions, dust, and noise

Municipal Building Bye-Laws

Enforced by tocal bodies

Regulate Building hei-girt, floor area ratio (FAR), set-back

Zoning norms, land use

The National Building Code (NBC) of India

Provides minimum regulations for buillding construction

Structural safety, fire safety, plumbing, lighting

Provisions: Saructural safety, oduit stagey plumbing, lighting

Municipal Building Bye-Laws

Enforced by local bodies

Regulate Building height: floor area rat to (FAR), set-bak

Zoning norms, land use

Occupational Safety, Health and Working Conditions Code, 2020

Focus on safety. working conditions and welfare-of construction workers

Focus on safety, working conditions and welfare

NEED OF LAWS IN THE CONSTRUCTION INDUSTRY

Ensuring Safety and Health

- Worker Safety: Laws like the Factories Act or Occupational Safety and Health standards help in preventing accidents and injuries on site.
- Public Safety : Regulations ensure that structures are stable, reducing risks of collapse, fire hazards, etc.

Maintaining Quality Standards

- Building Codes: These laws define the minimum standards for materials, design, and workmanship, ensuring durability and reliability.
- Inspection and Certification: Legal inspections prevent the use of substandard materials and unqualified practices.

Protecting Stakeholder Interests

- Contracts and Agreements: Construction laws govern contracts between owners, contractors, subcontractors, suppliers, etc.
- Dispute Resolution: Legal mechanisms (e.g., arbitration, litigation) are available for resolving conflicts fairly.

NEED OF LAWS IN THE CONSTRUCTION INDUSTRY

Ensuring Timely Project Completion

- Laws set penalties for delays, incentives for early completion, and guidelines for time extensions due to force majeure or other valid reasons.

Financial Security

- Payment Laws: Ensure timely payments to contractors and workers.
- Insurance and Bonds: Mandated by law to safeguard against financial loss due to defects, accidents, or unfinished work.

Environmental Protection

- Laws related to Environmental Impact Assessment (EIA), waste disposal, and green construction practices ensure sustainability.

Urban Planning and Zoning

- Compliance Construction must comply with local master plans, zoning laws, and land use regulations to avoid encroachment and haphazard development.

NEED OF LAWS IN THE CONSTRUCTION INDUSTRY

Ethical and Legal Accountability

- Prevents corruption, malpractice, and exploitation.
- Ensures compliance with labor laws, preventing child labor, underpayment, and overwork.

Record Keeping and Approvals

- Laws mandate proper documentation of designs, approvals, clearances, licenses, etc., protecting all parties in case of future disputes or legal action.

Encouraging Professionalism

- Legal requirements for licensing of professionals (engineers, architects, contractors) ensure competence and accountability.

ROLE OF BUILDERS, ENGINEERS, ARCHITECTS AND CONTRACTORS.

🏗️ ROLE OF BUILDERS:

Builders are responsible for turning the vision of a project into reality. They are usually developers or individuals overseeing the **overall management** and **execution** of construction.

Responsibilities:

- **Project Coordination**: Ensure all aspects of the project (labor, materials, equipment) are synchronized.
- **Budgeting & Scheduling**: Estimate project costs and set realistic timelines.
- **Compliance**: Ensure all building work adheres to local building codes, zoning laws, and safety standards.
- **Client Communication**: Act as the bridge between the client, architects, and other stakeholders.
- **Quality Control**: Oversee workmanship and material quality throughout the project.

Example:

In residential construction, a builder would coordinate everything from laying the foundation to the finishing of interiors.

ROLE OF BUILDERS, ENGINEERS, ARCHITECTS AND CONTRACTORS.

🛠️ ROLE OF ENGINEERS:

Engineers provide the **technical backbone** of construction projects. Their job is to ensure that buildings are **safe, stable, and functional**.

Types of Engineers:

- **Civil Engineers**: Design and supervise structural systems like columns, beams, slabs, etc.
- **Structural Engineers**: Analyze and ensure the structural integrity of buildings.
- **Geotechnical Engineers**: Evaluate soil and foundation suitability.

Responsibilities:

- **Design Validation**: Ensure designs are structurally sound and meet all engineering principles.
- **Technical Drawings**: Create and analyze detailed engineering drawings.
- **Site Inspections**: Conduct periodic checks to ensure construction matches technical standards.
- **Problem-Solving**: Address unexpected site conditions or design challenges.

ROLE OF BUILDERS, ENGINEERS, ARCHITECTS AND CONTRACTORS.

🏛️ ROLE OF ARCHITECTS:

Architects are the **creative minds** behind the aesthetics and functional layout of a structure. They balance **design intent** with **practical constraints**.

Responsibilities:

- **Concept Design**: Develop initial design concepts based on client requirements and site context.
- **Detailed Drawings**: Prepare architectural blueprints including plans, elevations, sections.
- **Compliance**: Ensure design follows zoning regulations, building codes, and safety norms.
- **Client Interface**: Translate client needs into spatial and visual form.
- **Coordination**: Work with engineers and consultants to integrate structural and MEP systems.

Example:

An architect designs a hospital layout that optimizes patient flow, daylight, and operational efficiency.

ROLE OF BUILDERS, ENGINEERS, ARCHITECTS AND CONTRACTORS.

👷 ROLE OF CONTRACTORS:

Contractors oversee **executing the construction work** as per the plans and specifications provided by architects and engineers.

Types of Contractors:

Main Contractors: Manage the entire construction site.

Subcontractors: Specialize in specific tasks (e.g., plumbing, electrical, painting).

Responsibilities:

Resource Management: Provide labor, equipment, and materials for the construction.

Execution: Carry out construction tasks including excavation, concreting, masonry, etc.

Site Supervision: Monitor daily site activities to ensure progress and quality.

Safety: Maintain on-site safety standards and manage risks.

Billing & Documentation: Handle project invoices, progress reports, and documentation.

Example:

The contractor ensures the building is constructed floor-by-floor as per the schedule, using the correct grade of concrete and proper curing methods.

INDIAN CONTRACT ACT 1872

Introduction

- **Enactment Date:**
  The Indian Contract Act was enacted on **1st September 1872**. It is one of the earliest legislations enacted after India came under direct British rule.
- **Purpose:**
  The Act provides the **legal framework** for making and enforcing contracts in India. It lays down the **rules and principles** governing contracts.
- **Geographical Scope:**
  The Act applies to the **whole of India**, including all states and union territories. It ensures a **uniform law** of contracts across the country.

Structure of the Act:

The Indian Contract Act is divided into **two main parts**:

- **General Principles of the Law of Contracts** (Sections 1 to 75):
  - Deals with the basic principles applicable to **all contracts** such as offer, acceptance, consideration, capacity to contract, free consent, etc.
  - Also includes the remedies for breach of contract.
- **Special Kinds of Contracts**:
  - Covers **specific types** of contracts like:
    - **Contracts relating to indemnity and guarantee**
    - **Bailment and pledge**
    - **Contracts of agency**
  - Earlier also included **Contracts Relating to Sale of Goods** and **Partnership**, which are now governed by separate laws.

CONTRACT -

According to sec.2(h), a contract is defined as an agreement enforceable before the law.

AGREEMENT –

According to sec.2(e), every promise or set of promises forming consideration for each other.

PROMISE –

According to sec.2(b), when a person made a proposal whom proposal is made, if proposal is assented there to.

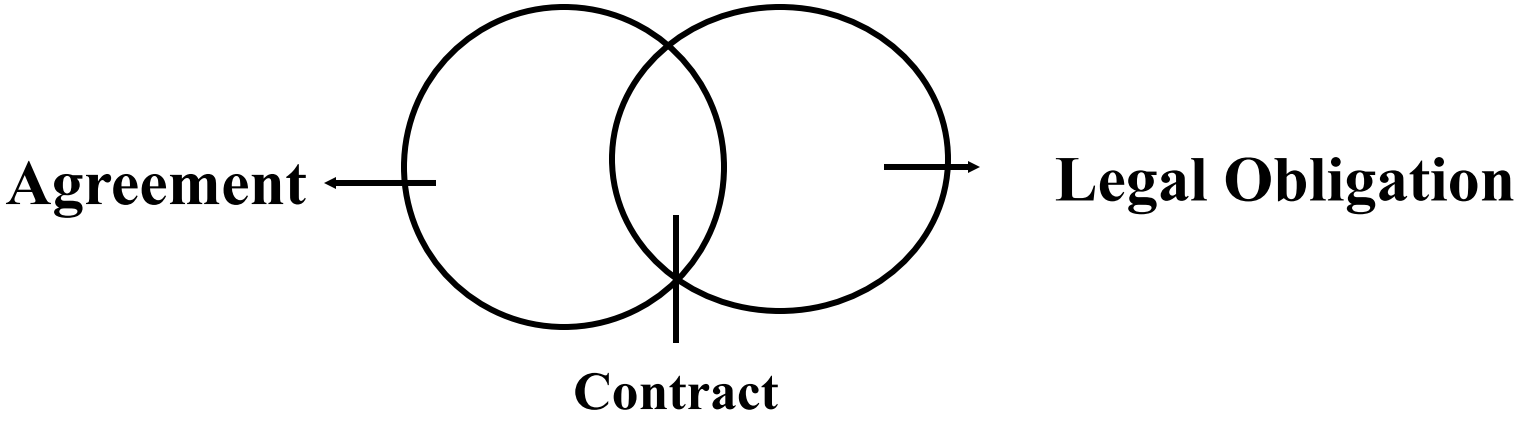
OFFER –

According to Sec.2(a), when a person made a proposal, when he signifies to another his willingness to do or to abstain from doing something.

AGREEMENT = OFFER + ACCEPTANCE

CONSENSUS - AD – IDEM-

According to Sec.13, meeting of minds or identity of minds or receiving the same thing in same sense at same time.



"All contracts are agreements, but all agreements are not contracts."

CONTRACT = AGREEMENT + ENFORCIBILITY BEFORE LAW

ESSENTIAL ELEMENTS OF A VALID CONTRACT (Sec.10)

1.Offer and Acceptance

2.Lawful Consideration

3.Capacity of Parties

4.Free Consent

5.Lawful Object

6.Not Expressly Declared Void

7.Certainty of Terms

8.Possibility of Performance

9.Legal Formalities

TYPES OF CONTRACTS

- **Valid Contract** – Legally enforceable
- **Void Contract** – Not enforceable
- **Voidable Contract** – Valid until cancelled
- **Illegal Contract** – Prohibited by law
- **Unenforceable Contract** – Lacks legal formalities

Free Consent

Meaning of Free Consent (Section 13)

- Consent means both parties agree upon the same thing in the same sense ("Consensus ad idem").
- **Free consent** is essential for a valid contract. **Consent is not free when influenced by:**

Coercion (Section 15)

- Use or threat of unlawful force to compel someone to enter a contract.
- Example: Threatening to harm someone unless they sign the agreement.
- Contract is voidable at the option of the aggrieved party.

Undue Influence (Section 16)

- Occurs when one party is in a position to dominate the will of the other and uses that position to gain an unfair advantage.
- Common in relationships like guardian-ward, doctor-patient, etc.
- Such contracts are voidable.

Fraud (Section 17)

- Intentional deception to induce a party into a contract.
- Includes false statements, concealment of facts, or promises made without intention to perform.
- Contract is voidable and the affected party may also claim damages.

Misrepresentation (Section 18)

- False statements made without intent to deceive.
- Believed to be true by the person making them.
- Contract is voidable if the misled party suffers loss.

Mistake (Sections 20-22)

- Bilateral Mistake: Both parties are mistaken about a fact essential to the contract – renders contract void.
- Unilateral Mistake: Only one party is mistaken – contract generally remains valid, unless the mistake is about the nature of the contract or identity of the party.

Discharge of Contracts

- **By Performance:** A contract is discharged when both parties fulfill their obligations as agreed.
- **Example**: A contractor completes the construction of a building, and the client pays the agreed amount.
- **By Mutual Agreement:** Parties may agree to cancel or alter the terms of the contract. This is called **novation**, **rescission**, or **alteration**.
- **Example**: Both parties decide to terminate the contract early with mutual consent.
- **By Lapse of Time:** If a contract is not performed within the specified time and no action is taken within the limitation period, it gets discharged.
- **Example**: A contract to deliver goods within 6 months is not acted upon for 3 years — it's discharged due to lapse of time.

❖ **By Operation of Law:** Sometimes, the law itself discharges the contract due to certain legal reasons.

- Situations include:
- Death or insolvency of a party
- Unauthorized alteration in contract terms
- Merger of inferior rights into superior rights

❖ **By Impossibility of Performance:** When it's impossible to fulfill the contract due to unforeseen events, it's discharged. Also called doctrine of frustration.

- **Example:** Destruction of subject matter, natural disasters, change in law making the act illegal.

❖ **By Breach of Contract:** When one party fails to perform or refuses to perform their part of the contract, the other party can consider the contract discharged.

- Types of Breach:
- Actual Breach: On the due date or during performance
- Anticipatory Breach: Before the performance is due

Remedies for Breach of Contract

When a contract is breached, the aggrieved party is entitled to legal remedies. These aim to either enforce the contract or compensate for the loss. The main remedies include:

Damages

❖ **Monetary compensation** awarded to the injured party.

❖ Types:

- **Ordinary Damages** – Loss directly arising from the breach.
- **Special Damages** – Loss arising from special circumstances communicated at the time of contract.
- **Exemplary (Punitive) Damages** – Rare; to punish the wrongdoer.
- **Nominal Damages** – Small sum awarded when no real loss occurred.

Specific Performance

❖ Court orders the **party in breach to perform their contractual obligation**.

❖ Granted when:

- Damages are inadequate.
- The subject matter is unique (e.g., sale of land or rare goods).
- Not granted for personal service contracts.

Injunction

- A **court order restraining a party from doing something** which breaches the contract.
- Example: Preventing an employee from joining a competitor if a valid non-compete clause exists.

Quantum Meruit

❖ Latin for *"as much as is earned"*.

❖ Compensation for work done or services rendered when:

- There is no concluded contract.
- A contract becomes void, but partial performance has occurred.
- One party prevents the other from completing the contract.

Contract of Indemnity [Section 124 of Indian Contract Act, 1872]

Definition:

A **Contract of Indemnity** is a contract in which **one party promises to save the other from any loss** caused to them:

- **By the conduct of the promisor**, or
- **By the conduct of any other person.**

Example:

- **Insurance Contract:** In a fire insurance policy, the insurer (indemnifier) promises to compensate the insured (indemnified) for any loss or damage to their property caused by fire.

Contract of Guarantee [Section 126 – Indian Contract Act, 1872]

A contract of guarantee is a contract **to perform the promise** or **discharge the liability** of a third person in case of his default.

- **Parties Involved:**

1. **Creditor** – The person who gives the loan or advances credit.
2. **Principal Debtor** – The person who has taken the loan and is primarily liable to repay.
3. **Surety (Guarantor)** – The person who gives the guarantee and promises to fulfill the obligation if the principal debtor fails.

- **Key Features:**

- It is a **tripartite agreement** involving all three parties.
- Can be **oral or written**, but usually in writing for legal enforceability.
- The surety's liability is **secondary** and arises only when the principal debtor defaults.

- **Example:**

Education Loan with Guarantor: A student takes an education loan from a bank (Creditor). A parent or guardian signs as a guarantor (Surety). If the student (Principal Debtor) fails to repay the loan, the bank can demand repayment from the guarantor.

Contract of Bailment [Sec 148]

- Definition: Bailment is the delivery of goods by one person (the Bailor) to another person (the Bailee) for a specific purpose, under the condition that the goods will be returned once the purpose is fulfilled or disposed of as per instructions.
- Parties: Bailor and Bailee
- Example: A contractor (**Bailor**) delivers a **concrete mixer** to a subcontractor (**Bailee**) for a specific construction task.

Contract of Pledge [Sec 172]

A pledge is the bailment of goods as security for the repayment of a debt or performance of a promise.

•Example: A construction company (pawnor) pledges steel bars to a lender (pawnee) as security to get a short-term loan. Once the loan is repaid, the materials are returned. If the company fails to repay, the lender may sell the materials after due notice.

Contract of Agency [Sec 182]

- A Contract of Agency is a relationship where one person (Agent) is authorized to act on behalf of another (Principal) to create legal obligations with a third party.
- Parties Involved:
  - ❖ Principal: The person who authorizes the act.
  - ❖ Agent: The person who acts on behalf of the principal.

Project Manager as Agent:

A builder (principal) appoints a project manager (agent) to:

- Negotiate contracts,
- Procure materials,
- Hire subcontractors.

All actions done by the manager within his authority bind the builder legally.

BUILDING & OTHER CONSTRUCTION WORKS ACT 1996

Objectives

- To regulate the employment & conditions of Service
- To provide for Safety, Health & Welfare measures
- To give the Building & Construction workers Social Security

Applicability

- Every establishment which employs or had employed ten or more workers directly or through a Contractor / Subcontractor (undertaking to produce a given result or supplying building workers for any work of the establishment, excluding supply of goods or articles of manufacture)

Exemption

- Any building or Construction work to which Factories Act, 1948 or Mines Act, 1952 apply

Responsibilities of Employer

- It shall be the duty of every employer to comply with requirements of rules.
- Employer shall not permit an employee to do anything not in accordance with the generally accepted principles of standard safe operating practices connected with building and other construction work.
- Employer will not allow lifting appliances, lifting gear, lifting device, transport equipment, vehicles or any other device or equipment to be used by the building workers which does not comply with provision of rules
- Employer shall maintain the latrines, urinals, washing facilities and canteen in a clean and hygienic condition

Safety and Health (GENERAL PROVISIONS)

Excessive Noise, Vibration Etc.

An employer shall ensure that adequate measures are taken to protect building workers against the harmful effects of excessive noise or vibration

PERMISSIBLE EXPOSURE IN CASES OF CONTINUOUS NOISE	
Total time of exposure (continuous or a number of short tern exposures) per day (in hours)	Sound level (in dBA)
8	90
6	92
4	95
3	97
2	100
1 1/2	102
1	105
3/4	107
1/2	110
1/4	115

Safety and Health (GENERAL PROVISIONS)

Fire protection

- An employer shall ensure that site is provided with fire extinguishing equipment sufficient to extinguish any probable fire
- Number of trained persons required to operate the fire extinguishing equipment
- Fire extinguishers shall be properly maintained and inspected at regular intervals of not more than one year
- Every launch or boat or other craft used for transport of building workers and the cabin of every lifting appliances including mobile crane, adequate number of portable fire-extinguishing equipment of suitable type shall be provided

Safety and Health (GENERAL PROVISIONS)

Emergency Action Plan

- Where more than 500 building workers are employed emergency action plan to handle the emergencies is prepared and submitted for the approval of the Director General

Safety and Health (GENERAL PROVISIONS)

Lifting And Carrying of Excessive Weight

- No building worker lifts by hand or carries over head or over his back or shoulders any material, article, tool or appliances exceeding in weight the maximum limit set out in following table unless aided by any other building worker or a mechanical device

Person	Maximum Weight Load
Adult - man	55 kg
Adult - woman	30 kg
Adolescent - male	30 kg
Adolescent - female	20 kg

Safety and Health (GENERAL PROVISIONS)

Dust, Gases, Fumes etc.

- An employer shall prevent concentration of dust, gases or fumes by providing suitable means to control their concentration within the permissible limit so that they may not cause injury or pose health hazard to building worker

Corrosive Substances

- Corrosive substances, including alkalis and acids, shall be stored in such a manner that it does not endanger the building worker
- Suitable protective equipment shall be provided during handling or use of such substances
- In the case of spillage of such substances on the building worker, immediate remedial measures shall be taken by the employer

Safety and Health (GENERAL PROVISIONS)

Eye Protection

- Suitable personal protective equipment for the protection of eyes shall be provided
- Building worker engaged in operations like welding, cutting, chipping, grinding or similar operations which may cause hazard to his eyes shall use such eye protection

Safety and Health (GENERAL PROVISIONS)

Head Protection & Other Protective Apparel

- Every building worker required to pass through or work within the areas where there is hazard of his being struck by falling objects or materials shall be provided with Safety helmets in accordance with national standards
- Every building worker required to work in water or in wet concrete or in other similar work, shall be provided with suitable water-proof boots

Safety and Health (GENERAL PROVISIONS)

Electrical Hazards

- Before commencement of work, adequate measures shall be taken to prevent any worker from coming into physical contact with any electrical equipment or apparatus, machines or live electrical circuit which may cause electrical hazard during the course of his employment
- Suitable warning signs shall be displayed and maintained at conspicuous places in Hindi and in a local language understood by the majority of the building workers

Safety and Health (GENERAL PROVISIONS)

Electrical Hazards

- Where exact location of underground power line is not known, the building worker using jack hammer, crow bars or other hand-tools, shall be provided with insulated protective gloves and foot wear in accordance with national standards
- All electrical appliances and current carrying equipment shall be adequately earthed
- All temporary electrical installations are provided with earth-leakage circuit breakers

Safety and Health (GENERAL PROVISIONS)

Vehicular Traffic

- All vehicles used at construction site shall comply with the requirements of Motor Vehicles Act, 1988 (59 of 1988) and the rules made thereunder
- The driver of a vehicle of any class or description shall hold a valid driving licence under the Motor Vehicles Act, 1988 (59 of 1988)

Safety and Health (GENERAL PROVISIONS)

Use of Safety Helmet And Shoes

- All persons who are performing any work or services at a building or other construction work, wear safety shoes and helmets conforming to the national standards

Lifting Appliances & Gear

Test and Periodical Examination of Lifting Appliances

- All lifting appliances shall be tested and examined by a competent person before being taken into use for the first time or after it has undergone any alteration or repairs liable to affect its strength or stability or after erection on construction site and also once at least in every one year

Lifting Appliances & Gear

Competent Person

- “Competent person” means a person so approved by Government, who belongs to a testing establishment in India, possessing adequate qualification, experience and skill for the purpose of testing, examination or annealing and certification of lifting appliances, lifting gears, wire ropes or pressure plant or equipment

Lifting Appliances & Gear

Identification & Marking of Safe Working Load

- Every lifting appliance and loose gear is clearly marked for its safe working load and identification by stamping or other suitable means
- Safe working load shall be marked in plain figures or letters upon the sling or upon a tablet or ring of durable material attached securely

Lifting Appliances & Gear

Operation of Lifting Appliances

- Every crane driver or lifting operator posses adequate skill and training in the operation of the particular lifting appliance
- No person under eighteen years of age shall be in control of any lifting appliance
- Operation of lifting appliances is governed by signals; in conformity with relevant national standards

Lifting Appliances & Gear

Register of Periodical Test, Examination & Certificate

- Employer shall ensure that register in specified form shall be maintained and particulars of such test and examination of lifting appliances shall be entered in register
- Certificate in prescribed form shall be obtained from competent person for winches, derricks, cranes, hoists, loose gear, wire ropes

Safety Organisation

Safety Committee

- Establishments, wherein 500 or more building workers are ordinarily employed, safety committee shall be constituted by employer represented by equal number of representative of employer and building worker.
- Safety committee shall meet at regular intervals at least once in a month and shall be chaired by person having overall control over affairs of site.

Safety Organisation

Safety Officer

- Establishment wherein 500 or more building worker are employed, employer shall appoint safety officer
- Safety officer may be assisted by suitable and adequate staff

NO. OF SAFETY OFFICERS	
Upto 1000 building workers	One
Upto 2000 building workers	Two
Upto 5000 building workers	Three
Upto 10000 building workers	Four
For every additional 5000 workers or part thereof	one

Safety Organisation

Reporting of Accident

- Notice of any accident on the construction site which either causes loss of life or disables a building worker from working for a period of forty-eight hours or more immediately following the accident, shall forthwith be sent to
  - Regional Labour commissioner (Central)
  - Board with which the building worker involved in accident was registered as a beneficiary
  - Director general and
  - Family member or other relative
  - Office incharge of nearest police station
  - District Magistrate

Medical Facilities

Medical Examination of Building Workers

- Building worker who is employed for a work involving risk or hazards as the Director General considers appropriate shall be medically examined.
- Every operator of a crane, winch or other lifting appliances, transport equipment or vehicle shall be medically examined and again periodically.
- No building worker shall be charged for medical examination.
- Record of such medical examination shall be maintained.

Medical Facilities

Ambulance Van

- An ambulance van shall be provided, or an arrangement shall be made with a nearby hospital for providing such ambulance van for transportation of serious cases of accident or sickness of the building workers to the hospital promptly and such van is maintained in good repair and is equipped with standard facilities.

Medical Facilities

First-Aid

- Sufficient number of first-aid boxes or cupboards shall be provided and maintained
- The box should be distinctly marked "First-aid" and shall be equipped with specified articles
- Trained first-aider shall be engaged at site

Welfare Facilities

Latrines & Urinal Accommodation

- Adequate number of Latrines and urinals to be provided at construction site
- Conveniently situated and accessible to building workers at all times
- Adequately lighted and shall be maintained in clean and sanitary condition
- Those connected with flush sewage system shall comply with requirement of public health authorities

Welfare Facilities

Canteens

- In every place wherein not less than 250 workers are employed, the employer shall provide adequate canteen in specified manner.
- Canteen shall consist of dining hall with sufficient furniture, kitchen, store-room, pantry and washing places.
- Sufficiently lighted at all times when any person has access to it.
- Premises shall be maintained in clean and sanitary condition.

Welfare Facilities

Drinking Water

- Employer shall ensure sufficient supply of wholesome drinking water.
- All such points shall be legibly marked “Drinking Water” in a language understood by a majority of the persons.
- No such point shall be situated within six metres of any washing place, urinal or latrine.

Penalty for Contravention of Provisions Regarding Safety Measures

- Whoever contravenes the provisions of any rules shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to two thousand rupees, or with both
- If any person who has been convicted of any offence punishable is again guilty of an offence, he shall be punishable on a subsequent conviction with imprisonment upto six months or with fine upto two thousand rupees or with both.

ENVIRONMENT PROTECTION ACT 1986

Introduction

- The period of 1970s experienced an ascend globally in industrialisation leading to degradation of the environment at a very high pace.

- The need was felt for a combined effort towards environment conservation from all over the world.

- The result of these combined efforts was The United Nations Conference on the Human Environment i.e. **The Stockholm Conference**, 1972 from 5 to 16 June 1972.

- In India, the Bhopal Gas Tragedy of 1984 called for urgent legislation in the field of environment.

- In this background the Parliament passed the **Environment Protection Act, 1986** and the **Environment Protection Rules, 1986.**

Stockholm Conference, 1972

- The Stockholm Conference, 1972 was held from 5th to 16th June 1972 by The United Nations Conference on the Human Environment.
- The focus of this conference was the state of the global environment and the relationship between economics, science and the environment in a political context.
- The emphasis was on solving environmental problems, but without ignoring social, economic and developmental policy factors.
- India played a very significant contributory role in this conference.
- This conference laid the foundation of Environmental Legislation in India.

Environment Protection Act, 1986

- The Act came into force on Nov. 19, 1986 and extends to the whole of India.
- The Act was passed to provide for the protection and improvement of environment and for matters connected there with.
- The Act gives certain powers to the Central Government to take measures for the purpose of protecting and improving the quality of the environment and to prevent environmental pollution.
- The Act is an "umbrella" legislation designed to provide a framework for Central Government coordination of the activities of various central and state authorities established under previous laws, such as the Water Act and the Air Act.

Important Definitions

- "**Environment**" includes water, air and land and the inter- relationship which exists among and between water, air and land, and human beings, other living creatures, plants, micro-organism and property. **[S-2(a)]**
- "**Environmental Pollutant**" means any solid, liquid or gaseous substance present in such concentration as may be, or tend to be, injurious to environment **[S-2(b)]**
- "**Environmental Pollution**" means the presence in the environment of any environmental pollutant **[S-2(c)]**



Central Government is most powerful under EP Act

- **General Powers of the Central Government (S-3)**

  -Take all necessary measures for environment protection.

  -Coordinate the actions of State Governments

  -Lay down standards of environment quality and pollutants.

  -Execute nationwide programmes.

  -Restriction of areas for industries, etc.

  -Inspecting industrial premises,

  -Preparation of manuals, codes or guides



- The Central Government may appoint officers and entrust them with such powers and functions as it may deem fit. **(S-4)**

Central Government is most powerful under EP Act

- The Central Government is empowered to issue directions to any person, officer or any authority . **(S-5)**

  - Closure direction (with power to disconnect electricity and water supply)

- The Central Government is empowered to make rules to regulate environmental pollution on the following matters: **(S-6)**

  - the standards of quality of air, water or soil

  - the maximum allowable limits of pollutants

  - the procedures for the handling of hazardous substances

  - the prohibition and restriction on the location of industries

  - the procedures and safeguards for the prevention of accidents

Prevention, Control, And Abatement Of Environmental Pollution under EP Act, 1986

- No person/industry is allowed to pollute the environment. **(S-7)**
- Procedures and processes are laid down to control pollution. **(S-9)**
- Monitoring authority can carry out inspections. **(S-10)**
- Power to take samples (As per prescribed procedure). **(S-11)**
- Samples are tested in environmental laboratories. **(S-12)**



Stringent Penalties and Punishments

- Whoever contravenes the provisions of the Act- maximum punishment up to 7 years and penalty up to Rs. 1 lakh or Rs. 5000 per day for continued offence. **(S-15)**
- For defaulter Companies or Body Corporates- Directors or partners are prosecuted. **(S-16)**
- This Act is also applicable to Government Departments and HOD is prosecuted. **(S-17)**





Salient Features Of The Act



- This Act deals with criminal jurisdiction.
- Central Government is most powerful.
- Environmental labs are established or authorised by Central Govt., State Govt., CPCB or State PCB.
- Standards are laid down by Central Govt., State Govt., CPCB or State PCB.
- Stringent penalties and punishments.
- Person having highest authority is prosecuted.
- Hazardous wastes are defined and special procedure is laid down.
- Locus standi is relaxed. Any person can file a case.
- This Act is also applicable to Government Department.
- This is an Umbrella Legislation.

Umbrella Legislation

There are several Rules laid down under the EP Act. Few of the important Rules are as under-

- Environment Protection Rules, 1986
- Hazardous Waste Rules, 1989 (Now 20
- Bio Medical Waste Rules, 1998
- Municipal Solid Waste Rules, 2000
- Noise Pollution Rules, 2000
- Ozone Depleting Substances Rules, 200
- Battery Waste Rules, 2001
- Plastic Waste Rules, 2011
- Electronic waste Rules, 2011



Umbrella Legislation

There are several Notifications issued under EP Act, 1986. Few important notifications are as under-

- Notification for restricting industries in Doon Valley area, 1989.
- CRZ Notification, 1991 (Now 2011).
- Notification for declaration of Dahanu Taluka as eco-sensitive zone, 1991.
- Notification for declaration of Matheran as eco-sensitive zone, 1992.
- Notification for declaration of Mahabaleshwar as eco-sensitive zone, 1993.
- Notification on Fly ash, 2000.
- EIA Notification, 2006.



THANK YOU